

HOUSE No. 2424

The Commonwealth of Massachusetts

PRESENTED BY:

Sean Garballey and Vanna Howard

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act requiring automatic external defibrillator devices in health clubs.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>1/15/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>1/15/2025</i>
<i>Paul J. Donato</i>	<i>35th Middlesex</i>	<i>2/3/2025</i>

HOUSE No. 2424

By Representatives Garballey of Arlington and Howard of Lowell, a petition (accompanied by bill, House, No. 2424) of Sean Garballey, Vanna Howard and Paul J. Donato relative to health clubs and the use and deployment of defibrillators. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2173 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act requiring automatic external defibrillator devices in health clubs.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 78 of chapter 93 of the General Laws, as appearing in the 2004
2 Official Edition, is hereby amended by striking out, in line 1, the words “section seventy-nine to
3 eighty-eight” and inserting in place thereof the following words:- sections 78A to 88.

4 SECTION 2. Said chapter 93 is hereby further amended by inserting after section 78, as
5 so appearing, the following section:-

6 Section 78A. A health club shall have on the premises at least 1 AED, as defined in
7 section 12V½ of chapter 112, and shall have in attendance during staffed business hours at least
8 1 employee or authorized volunteer as an AED provider, as defined in said section 12V½ of said
9 chapter 112.

Section 78B. A health club shall have a written emergency response policies and procedures, which shall be reviewed regularly and rehearsed. The written plan should be publicly available to all health club members.

Section 78C

The location of each AED shall have the following characteristics: secure and easily accessible; well marked, publicized, and known among trained staff; and near a communication line (telephone, radio, etc.) that may be used to contact backup, security, EMS, or 911.

SECTION 3. Section 86 of said chapter 93, as so appearing, is hereby amended by adding the following paragraph:-

Absent a showing of gross negligence or willful or wanton misconduct, no cause of action against a health club or its employees may arise in connection with the use or non-use of a defibrillator.

SECTION 4. Chapter 112 of the General Laws is hereby amended by striking out section 12V, as so appearing, and inserting in place thereof the following section:-

Section 12V. Any person, whose usual and regular duties do not include the provision of emergency medical care, and who, in good faith, attempts to render emergency care including, but not limited to, cardiopulmonary resuscitation or defibrillation, and does so without compensation, shall not be liable for acts or omissions, other than gross negligence or willful or wanton misconduct, resulting from the attempt to render such emergency care.

SECTION 5. Sections 1 and 2 of this act shall not apply to a health club, as defined by section 78 of chapter 93 of the General Laws, if that health club employs 5 or fewer full-time

31 equivalent employees, until 2 years after the effective date of this act. Sections 1 and 2 of this act
32 shall not apply to a health club, as so defined by said section 78 of said chapter 93, if that health
33 club employs more than 5 full-time equivalent employees, until 1 year after the effective date of
34 this act. For the purposes of this section, the term “full-time equivalent employee” shall equal 40
35 labor hours per week.